

Smt. Puja Bhattacharjee vs Sri Subir Acharjee on 23 April, 2025

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HIGH COURT OF TRIPURA
AGARTALA

CRP No.21 of 2025

Smt. Puja Bhattacharjee, W/o Sri Subir Acharjee, resident of Joyram Kutir,
West Bank fo Jagannath Dighi, P.S.-R. K. Pur, District - Gomati Tripura.
..... Petitioner(s).

VERSUS

Sri Subir Acharjee, S/o Sri Subhash Acharjee, resident of Chanban, near
Ajachok Asharm, P.S. R. K. Pur, District-Gomati Tripura.
..... Respondent(s).

For Petitioner(s) : Mr. Debalay Bhattacharya, Sr. Advocate, Mrs. A. Chakraborty, Advocate, Mr. Samar Das, Advocate.

For Respondent(s) : None.

HON'BLE THE CHIEF JUSTICE MR. APARESH KUMAR SINGH

Order

23/04/2025

Heard Mr. Debalay Bhattacharya, learned senior counsel, assisted by Mrs. A. Chakraborty, learned counsel for the petitioner.

2. The petitioner-wife has approached this Court again, now against the impugned order dated 27.03.2025 whereby the application under Section 26 of the Hindu Marriage Act, 1955 filed by the respondent-husband has been disposed of by granting visitation rights of the two minor children aged about 5 and 3 years respectively on two school closure days in a month in the morning for taking safe custody and fatherly interactions of the children from petitioners house and taking them to his house for facilitating meeting with grandparents and relatives of minors as well as other normal activities. The learned Family Court has prescribed seven conditions for ensuring that the visitation rights are effectively exercised. The timings of return should be 07:00 pm and in no case later than 09:00 pm. The learned Court has also imposed conditions on both the parents that the children should not be removed from the local limits of the territorial jurisdiction of the learned trial Court without prior permission. The day of taking the children would be communicated amongst the parties either over the phone or by a communication mechanism such as 'WhatsApp Chat' and for facilitating the same, the mobile phone numbers and email IDs should be exchanged and kept functional; failure to do so would invite appropriate legal action.

3. However, this order was passed on a date when the petitioner was not represented. A petition for adjournment was made on her behalf on the ground that she is busy in connection with family affairs. The learned Family Court, however, proceeded to consider the petition on merits observing that the ground put forth is a sham one and it is observed that the wife is avoiding appearance in the proceedings of this case.

4. Let it be indicated here that earlier the petitioner had approached this Court in CRP No.115/2024 against an interim order granting visitation rights to the respondent-husband under Section 26 of the Hindu Marriage Act, 1955 during pendency of the T.S. (Divorce) No.100 of 2022 instituted by the petitioner and also T.S. (RCR) No.56 of 2021 instituted by the respondent for restitution of conjugal rights under Section 9 of the Hindu Marriage Act, 1955. By order dated 20.12.2024, the petition was disposed of with the following observations:

"6. By the impugned order dated 05.12.2024 only an interim arrangement of visitation rights has been made by the learned Family Court and that too, for the month of December, 2024 allowing the respondent-husband to meet his two minor sons between 7 p.m. to 9 p.m. at his residence with a rider that such meeting should be on the school closure days, i.e. holidays. Granting of visitation rights during pendency of divorce proceedings for 2(two) hours in favour of one of the spouses when there is no such overwhelming material to deny such rights to one of the parents is not open to be questioned on any tenable grounds, more so, when the main proceedings are still pending before the learned Family Court. In case, these two dates are school working days or camp arranged by the school authorities and the children may have difficulties in attending, it was always open for the petitioner to seek modification of the dates of visitation rights before the learned Family Court. It is left open to the discretion of the learned Family Court to depute a Para Legal Volunteer, if deems necessary during the period on the dates of visitation at the residence of the respondent to ensure that the visitation is carried out in a peaceful manner.

7. The present revision petition is disposed of with the aforesaid observations.

Pending application(s), if any, also stands disposed of."

5. Mr. Debalay Bhattacharya, learned senior counsel for the petitioner, submits that the visitation rights have been granted while disposing of the petition under Section 26 of the Hindu Marriage Act, 1955, without hearing the petitioner. Moreover, the commencement of the visitation period is also not clearly indicated. The days on which the visitation rights would be exercised are also not clear. The petitioner is employed. Therefore, she may have genuine difficulties in carrying out the exercise contemplated under the impugned order dated 27.03.2025. Therefore, she has approached this Court.

6. Arrangements of custody of minor children are always interim in nature. The impugned order has only conferred visitation rights on two school closure days in a month from morning till 07:00 pm

and in no case later than 09:00 pm. To that extent, the approach of the learned Family Court cannot be faulted as the children would be free only on the days when their school is closed for going to their father's home. The timing of the return has also been indicated. The mode for fixing the dates on which such visitation rights is to be exercised either by phone or by 'WhatsApp chat' on the mobile phone and email IDs exchanged between the parties is also proper. The petitioner seems to have remained unrepresented in the proceedings for visitation rights initiated under Section 26 of the Hindu Marriage Act, 1955, by the respondent-father. Therefore, the learned Court proceeded to decide the case on merits, as such claims of visitation rights could not be kept pending affecting the interest of either of the parties and also the opportunity of the children to meet the other parent. Visitation rights are granted to ensure the wellbeing of the minor children who need the care, love and affection of both the parents. To that extent, this Court does not find any illegality or lack of proper conditions for exercise of the visitation rights by the respondent- father. Petitioner should allow the visitation rights to be effected in the manner granted by the learned Family Court. In case she experiences any genuine inconvenience also concerning the minor children, it is always open for either of the parents to seek modification of the conditions of exercising the visitation rights. Learned senior counsel for the petitioner submits that in the order dated 20.12.2024, this Court had observed that the learned Family Court would depute a Para Legal Volunteer, if deemed necessary, during the period on the dates of visitation at the residence of the respondent to ensure that the visitation is carried out in a peaceful manner. Such a condition may be reiterated.

7. This Court does not find any reason as to why such an arrangement by way of an abundant precaution cannot be made by the learned Family Court. As such, without interfering with any of the conditions imposed for exercise of visitation rights by the impugned order dated 27.03.2025, this Court is of the view that the learned Family Court, in its discretion, would depute a Para Legal Volunteer during the period on the dates of visitation at the residence of the respondent to ensure that the visitation is carried out in a peaceful manner. However, for effecting such an arrangement, it shall be the duty of the petitioner to apprise the learned Family Court and the Para Legal Volunteer so deputed about the date and the period during which visitation rights is to be carried during a month. Such information should be given at least three days in advance to learned Family Court concerned by both the respondent-husband and the petitioner so that proper arrangements can be made prior in point of time.

8. Accordingly, the instant petition is disposed of with the aforesaid observations. Pending application(s), if any, shall stand disposed of.

(APARESH KUMAR SINGH), CJ Munna S MUNNA SAHA Date: 2025.04.25 17:33:06 +05'30'